

24STCV28928 24STCV28928

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-07

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Case Number: 24STCV28928 Hearing Date: July 7, 2026 Dept: 732

Michelle Espinosa v. FCA US, LLC, et al.

Tuesday, July 7, 2026

CASE NUMBER: 24STCV28928

UNOPPOSED

Defendant FCA US,
LLC's Motion to Compel Responses to Requests for Production from Plaintiffs
Michelle Espinosa and Andres Espinosa

Facts:

This is a lemon law action. The Complaint alleges as follows. Plaintiffs Michelle Espinosa and Andres Espinosa ("Plaintiffs") purchased a 2020 Dodge Durango in December 2019, with express written warranties. (Complaint ¶ 10.) The vehicle contained or developed defects that the manufacturer has been unable to repair. (Complaint ¶¶ 15–31.)

Procedural History: Plaintiff filed the Complaint on November 4, 2024, alleging six causes of action:

1.

Civ. Code § 1793.2, subd. (d)

2.

Civ. Code § 1793.2, subd. (b)

3.

Civ. Code § 1793.2, subd. (a)(3)

4.

Breach of Implied Warranty of Merchantability

5.

Negligent Repair

6.

Fraudulent Concealment

Defendant

FCA US filed the present motion to compel on May 21, 2026. No opposition has been filed.

Analysis

I.

MOTION TO

COMPEL

A propounding party may demand a responding party to produce documents that are in their possession, custody or control. (Code Civ. Proc., § 2031.010.) A party may likewise conduct discovery by propounding interrogatories to another party to be answered under oath. (Code Civ. Proc. § 2030.010, subd. (a).) The responding party must respond to the production demand either by complying, by representing that the party lacks the ability to comply, or by objecting to the demand. (Code Civ. Proc., § 2031.210.) The responding party must respond to the interrogatories by answering or objecting. (Code Civ. Proc. § 2030.210, subd. (a).) If the responding party fails to serve timely responses, the propounding party may move for an order compelling responses to the production demand and interrogatories. (Code Civ. Proc., §§ 2030.290, 2031.300.)

A

party who fails to serve a timely response to interrogatories or a demand for

inspection waives any objection to the demand. (Code Civ. Proc., §§ 2030.290, 2031.300.)

Defendant FCA US, LLC (“Defendant”) moves to compel responses to requests for production from Plaintiffs Michelle Espinosa and Andres Espinosa (“Plaintiffs”). The requests were served on November 12, 2025, and Plaintiffs served responses without verification on December 29, 2025. (Hughes Decl. ¶¶ 4–5.) Plaintiffs have not served verifications despite the efforts of Defendant’s counsel to meet and confer. (Hughes Decl. ¶¶ 6–8, Exh. C.)

Responses

without verification are tantamount to no responses at all. (Motion at p. 6, citing *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 635–36.) Defendant has served discovery, and Plaintiffs’ responses consist of more than mere objections, but attestations of compliance that remain unverified. (Hughes Decl. Exh. B.) Plaintiffs have filed no opposition to the present motion.

The

motion is therefore GRANTED. Verifications shall be served within 20 days of this order.

1. Sanctions

The

prevailing party on a motion to compel is generally entitled to monetary sanctions, unless the court “finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. §§ 2030.290, 2031.300.) Sanctions are also mandatory against a party whose failure to serve responses to requests for admission makes the motion necessary. (Code Civ. Proc. § 2033.280, subd. (c).)

Defendant

seeks \$2,260.00 in sanctions representing 5.5 hours of attorney work at \$400 per hour. (Hughes Decl. ¶¶ 9–10.) This includes one hour of work responding to an opposition that was never filed, and \$400 are thus properly deducted from the sanctions lodestar.

Thus

sanctions are awarded against Plaintiffs and their counsel in the amount of

\$1,860.00, to be paid within 20 days of this order.

Superior Court of California

County of Los Angeles

Department 732

MICHELLE
ESPINOSA, et al.,

Plaintiffs

v.

FCA US, LLC, et al.,

Defendants.

Case No.:
24STCV28928

Hearing Date: July 7, 2026

[TENTATIVE] RULING RE:

Defendant FCA US, LLC's Motion to Compel Responses
to Requests for Production from Plaintiffs Michelle Espinosa and Andres
Espinosa.

Defendant FCA US, LLC's Motion to Compel
Responses to Requests for Production from Plaintiffs Michelle Espinosa and
Andres Espinosa is
GRANTED. Plaintiffs shall serve verifications for the requests within 20 days
of this order. Monetary sanctions are awarded against Plaintiffs and their
counsel in the amount of \$1,860.00, to be paid within 20 days of this order.

Defendant to give notice.

Dated: July 7, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court